

25STCV14869 25STCV14869

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-23

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Case Number: 25STCV14869 Hearing Date: September 23, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING (REVISED)

MARIA ESTER GUERRERO

VS.

HARRY H. WONG

Case

No.: 25STCV14869

Hearing Date: September 23, 2026

Plaintiff's

motion to compel further response from Defendant to her Special Interrogatories

(Set One) is MOOT.

The Court

declines to award sanctions at this time.

On 5/21/2025,

Plaintiffs Maria Ester Guerrero, Kevin de Jesus Guerrero, Jose Pedro Silvas

Flores, Ericka Beatriz Guerrero, Yessica Escobar, and Asher Escobar Guerrero

(collectively, Plaintiffs) filed suit against Harry H. Wong (Defendant). On

10/14/2025, Plaintiffs filed a first amended complaint (FAC) alleging: (1)

statutory breach of warranty of habitability; (2) breach of implied warranty of

habitability; (3) retaliation; (4) negligence; (5) nuisance; (6) intentional

infliction of emotional distress; (7) breach of contract; (8) breach of

covenant of quiet enjoyment; (9) breach of covenant of good faith and fair

dealing; (10) violation of Business and Professions Code section 17200; and

(11) violation of LAMC section 45.33.

On 5/15/2026,

Plaintiff Maria Ester Guerrero (Plaintiff) moved to compel further response

from Defendant to her Special Interrogatories (Set One).

Discussion

Plaintiff

argues that Defendant should be compelled to provide further responses because his

responses are evasive, incomplete, and consist of improper boilerplate

objections.

In

opposition, Defendant argues that his responses are sufficient and that

Plaintiff's motion is untimely.

Then, in a

supplemental filing from 9/22, Defendant indicated that supplemental responses

have since been provided.

Accordingly,

the substance of this motion is moot.

Under normal

circumstances, the Court would have found sanctions to be warranted as Defendant's

responses were facially deficient. For example, in response to an interrogatory

regarding inspection, Defendant responded "N/A" but this response is apparently

inconsistent with Defendant's admissions regarding involvement by the Los

Angeles County Department of Public Health. As such, the Court does not find

Defendant acted with substantial justification in failing to provide

supplemental responses.

However,

Plaintiff did not submit a reply to show that her motion was actually timely,

and where a party does not obtain trial court relief from the statutory

deadline for filing a motion to compel further production regarding a

deposition notice or subpoena, failure to move for further answers within the

statutory time forecloses further relief. (Weinstein v. Blumberg (2018)

25 Cal.App.5th 316.)

Based on the

foregoing, Plaintiff's motion to compel further response from Defendant to her Special

Interrogatories (Set One) is moot. The Court declines to award sanctions at

this time.

It is so ordered.

Dated: September

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at smcdept17@lacourt.org

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.